MB&P Müller-Boré & Partner
Patentanwälte PartG mbB

Müller-Boré • Friedenheimer Brücke 21 • 80639 München

Europäisches Patentamt

80298 München

May 21, 2026

European Patent Application 21 824 443.2
Applicant: Sartorius BioAnalytical Instruments, Inc.
Our ref.: S15991EU - kl/kn

**The following is a response to the communication pursuant to Article 94(3) EPC dated February 9, 2026:**

## 1. Amendments to the claims

Enclosed is a new set of claims 1 to 14 with indicated amendments as well as a clear copy thereof.

New claim 1 is based on previous claims 1, 6, and 11, and is further supported by the disclosure content provided in the description e.g. in original claims 1 and 10; as well as on page 27, item 32.

New claims 2 to 5 correspond to previous claims 2 to 5.

New claim 6 is based on previous claim 6 and is further supported by the disclosure content provided in the description e.g. on page 27, item 38.

**Müller-Boré & Partner**
**Patentanwälte PartG mbB**
Friedenheimer Brücke 21
80639 München
Tel. +49-(0)89/490 57-0
Fax +49-(0)89/490 57 10
mbp@mueller-bore.de
www.mueller-bore.de
VAT-No. DE811262789

**Patentanwalt** | 1
**Rechtsanwalt** | 2
**European Patent Attorney** | 3
**European Trademark Attorney** | 1
**European Design Attorney** | 1
**Japanese Patent Attorney** | 4
**Partner gem. PartGG** | 5
Dr. W. Müller-Boré (1927-1975)
Dr. Daniele Schiuma, Dipl.-Phys. | 1, 3, 5
Dr. Joachim Hock, Dipl.-Chem. | 1, 3, 5
Dr. Carsten Rocke, Dipl.-Phys. | 1, 3, 5
Christian Haydn, Dipl.-Phys. | 1, 3, 5
Dr. Konstanze Lenhard, Dipl.-Biol. | 1, 3, 5
Dr. Michael Huber, Dipl.-Phys. | 1, 3, 5
Dr. Ulrich Hoffmanns, Dipl.-Chem. | 1, 3, 5
Andreas Ken Schepers, Dipl.-Ing. | 1, 3, 5
Dr. Stephan Beer, M.Sc. (Chem.) | 1, 3, 5
Karsten Schmidt, LL.B., Dipl.-Ing. | 1, 3, 5
Dr. Maria Burger, M.Sc. (Phys.) | 1, 3
Malte Munderloh, Dipl.-Phys. | 1, 3
Dr. Nicolas Streidl, Dipl.-Chem. | 1, 3
Dr. Hans Laub, M.Sc. (Chem.) | 1, 3
Samuel Adams, LL.M., B.S. (Comp.) | 1, 3
Dr. Tilman Hain, Dipl.-Chem. | 1, 3
Thomas Hammann, M.Sc. (Aerosp.) | 1, 3
Dieter Schaffner, Dipl.-Ing. (FH) | 1, 3
Dr. Robert Knall, Dipl.-Biol. | 1, 3
Elcin Celenk | 2
Yuko Matsuya-Todini, M.Sc. | 3, 4
Alexandra Wendl, Dipl.-Ing. (FH) | 3
Dr. Markus Schlapps, Dipl.-Phys. | 1, 3
Yoshihito Imai, B.Eng. | 3, 4
Tomoko Kitamura, Dipl.-Inf. | 3
Dr. Reiko Wada-Kröck, M.Sc. (Pharm.) | 3
Dr. Anna Elia, M.Sc. (Phys.) | 1, 3
Hansjörg Neiber, Dipl.-Ing. | 1, 3
Francesco Russo, LL.M., M.Sc. (Eng.) | 3
Dr. Helena Schöwerling | 2
Dr. Fabian Hanusch, M.Sc. (Chem.) | 1, 3
Tim Nebas, M.Sc. (Sports Eng.) | 1, 3
Dr. Anne Kunz, Dipl.-Met. | 1, 3
Dr. Christoph Brenninger, M.Sc. | 1, 3
Dr. Nobuhiro Tago, M.Sc. (Life science) | 3
Dr. Johannes Ahner, Dipl.-Chem. | 1, 3
Dr. Dominik Essig, M.Sc. (Chem.) | 1, 3
Dr. Matthias Hoffmann M. Sc. (Chem.) | 1
Andreas Rutetzki (Of Counsel) | 1, 3

**Partnerschaftsgesellschaft mbB**
Sitz der Gesellschaft: München
Amtsgericht München
Reg.-Nr.: PR 56

**Deutsche Bank AG**
Promenadeplatz 15
80333 München
BIC DEUTDEDBMUC
IBAN DE16 7007 0024 0271 3220 00

New claim 7 corresponds to previous claim 7.

New claim 8 is based on previous claim 8 and is further supported by the disclosure content provided in the description e.g. in original claim 13.

New claim 9 is based on previous claim 9 and is further supported by the disclosure content provided in the description e.g. on page 32, item 77.

New claim 10 corresponds to previous claim 10.

New claim 11 is based on previous claims 11 and 12.

New claim 12 is based on previous claim 13 and is further supported by the disclosure content provided in the description e.g. on page 32, item 77.

New claims 13 and 14 correspond to previous claims 14 and 15.

## 2. Art. 123(2) EPC

2.1 Most of the objections raised in section 1 of the above communication have been overcome by submitting new claims 1 to 14.

In particular, (i) the subject matter of previous claim 11 has been incorporated into new claim 1, (ii) the subject matter of original claim 10 has been incorporated into new claim 1, (iii) the subject matter of original claim 13 has been incorporated into new claim 8, and (iv) the previous erroneous comma has been deleted in new claims 9 and 12 (previous claims 9 and 13).

2.2 New claim 1

Further, regarding the request for basis for the last line of previous claim 1 for the term “from fluorescent properties (...) in the treated solution”, new claim 1 maintains this feature, basis for which in the application as filed can be found on page 3, lines 27 to 30.

In this context, when claim 1 of the present application was amended to include the feature "from fluorescent properties (...) in the treated solution", basis was identified in the larger description in the application from page 3, line 20, through page 4, line 12 and page 20, lines 1 to 22. The following passage at page 3, line 28, through page 4, line 3 of the original description is particularly illustrative in this regard:

> *"The fluorescent viral particles have fluorescent activity throughout the viral clearance evaluation process, permitting rapid and consistent quantification of initial test solutions, resulting purified solutions, and intermediate solutions of interest at any point during processing under evaluation. Quantification may conveniently be performed using the fluorescent properties of the fluorescent viral particles, and without the added time and complexity otherwise required to fluorescently label viral particles at the time of quantification analysis."*

This quoted passage appears in the summary section of the description immediately following the background section that describes quantification techniques previously used for viral clearance evaluation. The quoted portion summarizing the nature of the present invention as pertaining to fluorescent properties provided by the fluorescent viral particles, as distinguished from prior quantification techniques used in viral clearance evaluation as identified in the background section, points the skilled person to analytical quantification of the fluorescent viral particles from their fluorescent properties and as such the skilled person would unambiguously derive the use of those fluorescent properties to quantify a concentration of the fluorescent viral particles in the treated solution in the method for viral clearance evaluation recited in new claim 1.

2.3 New claim 6

As noted above, the feature "determining a feed concentration of the fluorescent viral particles in the evaluation solution and a residual concentration of the fluorescent viral particles in the treated solution" finds basis for addition to new claim 1 on page 27, item 32, of the application as filed. With inclusion of that feature in new claim 1, the feature becomes redundant in new claim 6 and has, therefore, been removed.

2.4 New claim 8

As outlined above, the subject matter of original claim 13 has been incorporated into new claim 8, indicating that

> *"wherein the determining a degree of removal of the fluorescent viral particles comprises subjecting a sample volume of the evaluation solution to an analytical technique to analytically quantify a feed concentration of the fluorescent viral particles in the evaluation solution"*

This addition returns new claim 8 essentially to the content of original claim 13, with only a minor correction of the terminology relative to the second part of original claim 13, to better conform terminology of current claim 8 to the terminology "sample of the treated solution" recited in new claim 1 rather than the terminology "sample volume of the sample of treated solution" as recited in original claim 13.

2.5 In summary, the subject matter of new claims 1 to 14 is in accordance with the provisions of Art. 123(2) EPC.

## 3. Patentability of the subject matter of the present application

Patentability of the claimed subject matter of the present application seems to have already been acknowledged. Therefore, no further comments are deemed to be necessary in this respect.

## 4. Requests

In view of the above explanations, as well as the amendments to the claims, it is submitted that this application is in condition for allowance. The adaptation of the description to the new claims' version as well as to the European patent practice can be prepared shortly, once the wording of new claims 1 to 14 has been accepted by the Examining Division.

It is therefore requested that either the communication pursuant to Rule 71(3) EPC or a further favorable communication be issued or to call shortly the undersigned over the phone.

However, should the Examining Division still have any objections with regard to the present application, it is respectfully requested to issue a further communication according to Art. 94(3) EPC or to schedule a personal interview or oral proceedings according to Art. 116(1) EPC.

European Patent Attorney



Dr. Konstanze Lenhard

Encls.
New claims 1 to 14 with indicated amendments
Clear copy of new claims 1 to 14